

CHAPTER - 6

LEGAL APTITUDE-I

INTRODUCTION OF LAW ITS CLASSIFICATION

The Law

Law has been defined as “a body of rules of action or conduct prescribed by a controlling authority, and having binding legal force. That which must be obeyed and followed by citizens subject to sanctions or legal consequence is a law.

The Purposes of Law

In a society, the law informs everyday life in a wide variety of ways and is reflected in numerous branches of law. For example, contract law regulates agreements to exchange goods, services, or anything else of value, so it includes everything from buying a bus ticket to trading options on a derivatives market.

PUBLIC LAW VERSUS PRIVATE LAW

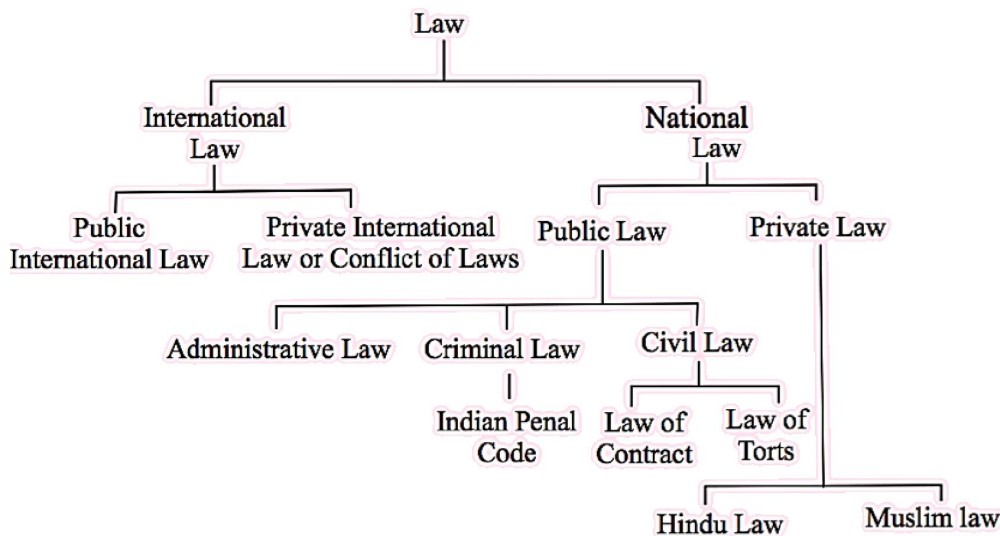
Public Law aims to protect the public interest	Private Law seeks to protect private interests
Individuals and the state are the main parties involved	Private entities or organizations acting in the private capacity are the main parties involved
Ensure the public interest of the general population	Secure private interests/freedom of the individuals in the community
Responsible for regulating a harmonious relation between the citizens and the state	Responsible for regulating the activities between two or more private entities in a just and fair manner
Penal sanctions are more severe	Sanction usually include the payment of damages

SOURCES OF LAW



CLASSIFICATION OF LAW

Broad Classification of Law



Intellectual Property Rights

What are the 4 types of Intellectual Property?

The 4 main types of intellectual property are listed below.

1. **Patents** – It is used for protecting new inventions, ideas, or processes. Patent holders need to pay periodic government renewal fees. An approved patent is for a limited time period. Know more about [Patents Act in India](#).
2. **Copyrights** – It protects the ideas, examples would be written works, music, art, etc.
3. **Trademarks** – It is something that protects the symbols, colors, phrases, sounds, design etc.
4. **Trade Secrets** – It may be strategies, systems, formulas, or other confidential information of an organization that provides them a competitive advantage in the market.

Why is Intellectual Property Important?

Intellectual Property Rights are important to stimulate and promote research and development. If the inventions and ideas of individuals and organizations are not protected then the concerned people or organizations will not reap the benefits of their hard work and naturally, it will lead to discontent and reduce the efforts in the field of research and development, which is extremely important for the growth and development of humanity.

India and IPR

- India is a member of the **World Trade Organisation** and committed to the Agreement on **Trade Related Aspects of Intellectual Property (TRIPS Agreement)**.
- India is also a member of World Intellectual Property Organization, a body responsible for the promotion of the protection of intellectual property rights throughout the world.
- India is also a member of the following important **WIPO-administered International Treaties and Conventions relating to IPRs**.
- **INDIAN EVIDENCE ACT 1872**
- **EVIDENCE**
- **PROOF**
- **ALIBI**
- **CONFESSION**
- **BURDEN OF PROOF**

6. Doctrine Of Res Gestae

'Res Gestae' is a Latin word that roughly means to 'things done.' The principle of res gestae arose from the belief that such acts or statements, which would otherwise be irrelevant and inadmissible, could be admitted as evidence because of the situation in which they were committed or uttered.

7. **Dying declaration**
8. **Examination**
9. **Leading question**
10. **Hostile witness**
11. **Proceeding in Camera**

CRIMINAL PROCEDURE CODE, 1973

Types of Offence

- **Cognizable offense:** It is an offense for which, a police officer may arrest without a warrant in accordance with the First Schedule or any other law in force at the time.
- **Non-cognizable Offence:** It is one for which a police officer has no authority to arrest without a warrant.
- **Bailable offense:** It means an offense listed in the First Schedule or made bailable by any other law currently in force.
- **Non-bailable offense:** A non-bailable offense is a serious offense for which the accused does not have the right to be released on bail. Only by order of the competent court can the accused be released on bail for this offense.

What is Bail?

- **Bail:** Security for the accused person's appearance in court in exchange for being released from a pending trial or investigation. The primary goal of bail is to release the accused from lawful custody. Bail is granted when the court believes that the accused person will not flee and will appear in court as and when the court requires.
- **Anticipatory Bail:** Bail granted prior to the arrest of the accused. If the accused believes he will be arrested on false or baseless charges, he may apply for anticipatory bail.

Trial under CrPC

- **Sessions Case:** These are cases in which the penalties for the offenses involved are death, life imprisonment, or imprisonment for more than seven years. The trial in such cases is to be handled

by a Sessions Court after the case has been forwarded by the magistrate or after the crime has been committed.

- **Summons-case:** It refers to a case involving an offense that is not a warranty case.
- **Warrant-case:** It is a case involving an offense punishable by death, life imprisonment, or imprisonment for a term of more than two years.
- **Summary Case:** Summary trials are essentially those types of trials in which speedy justice must be delivered, i.e. cases that must be resolved quickly and with a simplified process.

Other Basic Concepts

- **First Information Report (FIR):** It is an important document and piece of evidence in criminal proceedings. The investigation continues in court on the basis of the First Information Report. First Information is the information given to a police officer and reduced to writing as required by Section 154 of the CrPC.
- **Station House Officer or Officer-in-Charge of a Police Station:** The officer in charge of the police station is a key person in the investigation process. In his absence, the police officer at the station, who is next in rank to him, is the officer in charge.
- **Complaint:** Any allegation made orally or in writing to a Magistrate with the intent of causing him to take action under the CrPC. However, the police report is not a complaint.
- **Police Report:** It refers to a report forwarded by a police officer or, more specifically, by the State Government, to a police station, and includes any local area designated by the State Government in this regard.
- **Investigation:** It refers to all proceedings under this Code for the collection of evidence conducted by a police officer or any person (other than a Magistrate) who is authorized in this capacity by a Magistrate.